

Instructions for signing your Will

1 Print and review your Will

Print your Will and read through it carefully. Make sure all names, addresses, gifts and other details are correct. If anything needs updating, log in to your Vault at heirloomlife.com.au and make changes before printing.

2 Assemble your Will -- DO NOT INCLUDE THE FUNERAL WISHES PAGE

- Remove this cover sheet and the Funeral Wishes page -- they do not form part of your Will.
- Keep all Will pages together in the correct order.

3 Find two independent adult witnesses

Each witness must:

- be 18 years of age or older;
- not be a beneficiary under this Will; and
- be capable of witnessing the signing and be present to see you sign.

4 Sign your Will in the presence of both witnesses

With both witnesses present and watching at the same time:

- sign in the space at the bottom of each page of the Will; and
- sign and complete the Execution & Attestation section on the last page.

Both witnesses must then sign in the same spaces while you are present. Do not sign any page before both witnesses are present.

5 Store your Will safely

Keep the original signed Will somewhere secure and tell your Executor(s) exactly where it is located. Keep a copy in a separate safe location.

Heirloom recommended practice

As a risk-management practice, Heirloom recommends: (1) neither witness should be the spouse or de facto partner of a beneficiary; (2) use a single blue or black ballpoint pen throughout.

Remote signing?

Signing remotely via audiovisual link? Do not use these instructions -- contact Heirloom through your Vault for the separate AV witnessing procedure.

LAST WILL AND TESTAMENT OF JAMES PATRICK O'SULLIVAN

I, James Patrick O'Sullivan, of 18 Rosebery Avenue, Balmain, NSW, 2041, being married, declare this to be my Last Will and Testament.

1. REVOCATION

I revoke all former wills, codicils and other testamentary dispositions previously made by me.

2. APPOINTMENT OF EXECUTOR

I appoint Priya O'Sullivan ("my Executor") to be the executor of this my Will.

If I appoint more than one executor, they are appointed to act jointly. A reference to "my Executor" in this Will means all of them acting together. If any named executor dies, renounces probate, or becomes unable or unwilling to act before obtaining a grant of probate, the surviving or remaining executor or executors shall act alone.

3. SUBSTITUTE EXECUTOR

If Priya O'Sullivan is unable or unwilling to act, or ceases to act, as executor of this Will, I appoint Brendan O'Sullivan as substitute executor in their place.

4. APPOINTMENT OF GUARDIAN

I appoint Brendan O'Sullivan to be the guardian of any of my children who are minors at the time of my death.

My Executor is authorised to provide my guardian with sufficient funds from my estate to assist with the care and upbringing of my minor children, as my Executor in their discretion thinks fit.

James Patrick O'Sullivan Signature

Witness 1 Signature

Witness 2 Signature

This appointment is subject to any order made by a court of competent jurisdiction. Any dispute as to the exercise of guardianship shall be determined in the best interests of the child.

5. DEBTS AND EXPENSES

My Executor must pay, as soon as reasonably practicable after my death and before making any distribution to beneficiaries, all of my just and lawful debts, my reasonable funeral and burial or cremation expenses, and all costs and expenses of administering my estate (including legal fees and accounting fees).

My Executor may defer payment of any debt that is genuinely disputed until the dispute is finally resolved, and may set aside a reasonable reserve from my estate to meet any contingent liabilities.

6. SPECIFIC GIFTS

I give the following specific gifts:

- my grandfather's Omega Seamaster watch to Brendan O'Sullivan (Brother)
- the sum of \$10,000 to St Vincent de Paul Society NSW (Charity)

If any of the above gifts is a specific item of property (not a cash sum) and that property does not form part of my estate at the date of my death -- because it has been sold, given away, lost or destroyed -- that gift will fail through ademption and will not be replaced by money or other property from my estate.

If any of the above gifts is a cash sum, my Executor shall pay it from the general assets of my estate as a pecuniary legacy before distributing the residue.

7. RESIDUARY ESTATE

James Patrick O'Sullivan Signature

Witness 1 Signature

Witness 2 Signature

Subject to the payment of my debts, funeral expenses and the costs of administering my estate, I give the whole of the rest and residue of my estate to Priya O'Sullivan (Spouse) absolutely. If Priya O'Sullivan (Spouse) does not survive me by 30 days, that share passes instead to Priya O'Sullivan's children, equally.

If all persons otherwise entitled to receive a share of the residue under this clause (including any substitute beneficiaries) fail to survive me, or fail to satisfy any applicable survivorship condition, that share shall pass in accordance with the intestacy provisions of the Succession Act 2006 (NSW) as if I had died without a Will.

8. SURVIVORSHIP AND GIFT RULES

The following rules apply to all gifts made under this Will:

Survivorship

A beneficiary must survive me by at least 30 days to be entitled to receive a gift under this Will, whether the gift is specific, pecuniary or residuary.

Lapse of gifts

If a gift to a named individual lapses because the beneficiary does not survive me by 30 days and no substitute beneficiary has been named for that gift, the lapsed gift shall fall into the residue of my estate.

Class gifts

James Patrick O'Sullivan Signature

Witness 1 Signature

Witness 2 Signature

A gift to a class of persons (for example, "to my children equally") takes effect in favour of all members of the class who survive me by at least 30 days. A child who is conceived before the death of the relevant person and born alive within the usual period of gestation following that death is treated as a member of the class. If a class member does not satisfy the survivorship condition but is survived by one or more descendants who do, those descendants take the class member's share equally per stirpes, subject to the same survivorship condition. If a class member does not satisfy the survivorship condition and leaves no surviving descendant, their share accrues to the surviving members of the class in proportion to their shares.

Uncertain order of death

If it is uncertain whether a beneficiary survived me, that beneficiary shall be presumed to have died before me for the purposes of this Will.

9. MINOR BENEFICIARY TRUST

If any beneficiary under this Will is under the age of 25 years at the date on which they become entitled to receive a gift, my Executor shall hold that beneficiary's entitlement (the "Trust Property") on the following trusts:

- (a) my Executor shall hold the Trust Property and any income from it on trust for the beneficiary until they attain the vesting age or die under that age;
- (b) until the beneficiary attains the vesting age, my Executor may in their absolute discretion apply so much of the income and capital of the Trust Property as my Executor thinks fit for the maintenance, education, advancement and general benefit of the beneficiary;
- (c) on the beneficiary attaining the vesting age, my Executor shall transfer the Trust Property (including any undistributed income) to the beneficiary absolutely;

James Patrick O'Sullivan Signature

Witness 1 Signature

Witness 2 Signature

(d) if the beneficiary dies before attaining the vesting age, the Trust Property shall pass to any backup beneficiary named for that gift or, if none, shall fall into the residue of my estate, except that if the Trust Property is itself the residue or a share of the residue, it shall instead pass to the other beneficiaries entitled to the residue in the proportions in which they take it or, if there are none, shall be distributed in accordance with the intestacy provisions of the Succession Act 2006 (NSW) as if I had died without a Will.

10. ADVANCEMENT POWERS

In addition to any power conferred under this Will or by the Trustee Act 1925 (NSW), my Executor may at any time, in their absolute discretion, advance all or any part of the capital of any trust fund held for a minor beneficiary for the maintenance, education or other benefit of that beneficiary, without being required to bring the advancement into account when calculating the beneficiary's final entitlement unless my Executor specifies otherwise at the time of the advancement.

In exercising this power, my Executor:

- (a) may pay any amount directly to the minor's parent or guardian, or directly to a school, medical provider or other person on behalf of the minor;
- (b) is not obliged to have regard to other resources available to the minor or their parent or guardian; and
- (c) shall keep a reasonable record of any advancements made.

11. EXECUTOR POWERS

In addition to all powers conferred by law, my Executor has the following powers, exercisable at my Executor's absolute discretion:

- (a) Sale -- to sell, call in and convert into money any part of my estate at any time and in any manner my Executor thinks fit, and to grant options over any estate property;

James Patrick O'Sullivan Signature

Witness 1 Signature

Witness 2 Signature

(b) Postponement -- to postpone the sale or conversion of any estate property for as long as my Executor thinks fit, without liability for any loss caused by the postponement;

(c) Receipts and compromises -- to collect and receive all amounts due to my estate, and to settle, compromise or refer to arbitration any debt, claim or dispute on such terms as my Executor thinks fit;

(d) Assents -- to assent to the vesting of, or transfer, any estate property to any beneficiary in or towards satisfaction of their entitlement under this Will;

(e) Professional assistance -- to employ solicitors, accountants, financial advisers and other professionals, and to pay their costs and expenses from my estate.

My Executor may exercise any of these powers without the consent of any beneficiary.

12. TRUSTEE POWERS

Where my Executor acts as trustee of any trust arising under this Will, my Executor has the following investment and management powers, which are in addition to all powers conferred by the Trustee Act 1925 (NSW) and are not limited by it:

(a) Investment -- to invest trust funds in any form of investment, including property, equities, managed funds and any other investment that a prudent person of business would consider appropriate, subject to any overriding duties of prudence and loyalty owed to the beneficiaries;

(b) Retention -- to retain any property forming part of the trust for such period as my Executor thinks fit without liability for loss, even if it is not otherwise an authorised investment;

(c) Variation -- to vary, transpose or realise any investment when and in such manner as my Executor thinks fit;

(d) Delegation -- to delegate investment functions to a person reasonably believed to be appropriately qualified, and to review that delegation at reasonable intervals, to the extent permitted by law;

James Patrick O'Sullivan Signature

Witness 1 Signature

Witness 2 Signature

(e) Professional advice -- to obtain and rely on the advice of investment or other professionals, and to act on that advice in good faith, without personal liability for any resulting loss.

The powers conferred by this clause are in addition to, and not in derogation of, all other powers conferred by law or this Will.

13. TRUSTEE APPOINTMENT

My Executor (acting as trustee of any trust arising under this Will) may at any time, by deed, appoint one or more additional trustees or substitute trustees of that trust, provided that:

- (a) the total number of trustees shall not exceed four at any time;
- (b) every individual trustee must be at least 18 years of age and legally capable of acting as trustee at the time of appointment and throughout their tenure (unless a corporate trustee is appointed); and
- (c) a new trustee appointed under this clause shall have the same powers and obligations as the original trustee.

This power is exercisable in addition to any power of appointment conferred by the Trustee Act 1925 (NSW).

A trustee who retires, whether under this clause or under the Trustee Act 1925 (NSW), is not released from any liability arising before their retirement.

14. APPROPRIATION POWER

My Executor may, in their absolute discretion, appropriate any property (whether real or personal) forming part of my estate towards the satisfaction of any legacy, share or pecuniary entitlement payable to any beneficiary, at such value as my Executor determines to be fair and reasonable at the date of appropriation.

In making an appropriation, my Executor:

James Patrick O'Sullivan Signature

Witness 1 Signature

Witness 2 Signature

- (a) is not required to obtain the prior consent of the beneficiary;
- (b) shall give reasonable notice of the appropriation to the beneficiary or, if the beneficiary is under a legal disability, to their legal representative;
- (c) shall document the appropriation in writing; and
- (d) may take into account any tax consequences for the estate or the beneficiary.

An appropriation duly made under this clause is final and binding on all persons interested in my estate.

This power is in addition to any power of appropriation conferred by the Trustee Act 1925 (NSW) or any other legislation.

15. DELEGATION POWER

My Executor may, in their discretion, delegate any professional, administrative, legal or financial function arising in the administration of my estate to any solicitor, accountant, financial adviser, estate agent or other professional or agent, and may pay the reasonable costs and expenses of such delegation from my estate. A delegation under this clause does not extend to the exercise of any discretion that is personal to my Executor as a matter of law or equity.

A delegation under this clause:

- (a) must be in writing and specify the scope of the delegation;
- (b) does not release my Executor from their general duties as executor, but allows them to rely on the expertise of the delegate in good faith; and
- (c) may be revoked by my Executor at any time.

My Executor is not personally liable for any act or omission of a delegate appointed in good faith under this clause, provided my Executor exercised reasonable care in selecting the delegate.

James Patrick O'Sullivan Signature

Witness 1 Signature

Witness 2 Signature

16. EXECUTOR INDEMNITY

My Executor shall be indemnified out of my estate from and against all actions, proceedings, claims, liabilities, costs and expenses arising from or incidental to the administration of my estate and the exercise of any power or discretion under this Will, except to the extent that the liability arises directly from my Executor's own fraud, wilful default or gross negligence.

My Executor shall not be personally liable for:

- (a) any loss or depreciation in the value of any estate asset (including any investment), unless the loss results from my Executor's fraud, wilful default or gross negligence;
- (b) any act or omission of any agent, solicitor, accountant or other professional appointed in good faith by my Executor; or
- (c) any act done or omission made in good faith in reliance on the advice of a barrister, solicitor or other qualified professional.

My Executor's right to indemnity under this clause is in addition to, and does not limit, any right of indemnity conferred by law.

17. DEFINITIONS

In this Will, unless the context otherwise requires:

"my estate" means all real and personal property of which I am the beneficial owner at the date of my death, including property over which I have a general power of appointment;

"my Executor" means the executor or executors for the time being of this Will, including any substituted executor, and includes my Executor acting as trustee where the context so requires;

"child" and "children" include any person recognised as my child under the Status of Children Act 1996 (NSW) and any child adopted by me, but does not include a stepchild unless expressly stated;

"minor" means a person who has not yet attained the age of 18 years;

James Patrick O'Sullivan Signature

Witness 1 Signature

Witness 2 Signature

"vesting age" means the age specified in a trust clause at which a beneficiary becomes absolutely entitled to trust property;

"intestacy rules" means the rules of intestacy as set out in Chapter 4 of the Succession Act 2006 (NSW).

Words importing one gender include all genders. Words importing the singular include the plural and vice versa. A reference to a person includes a corporation.

18. INTERPRETATION

This Will is to be construed in accordance with the law of New South Wales.

If any provision of this Will is held to be void, invalid or unenforceable for any reason, that provision shall be severed from this Will and the remaining provisions shall continue in full force and effect as if this Will had been executed without the severed provision.

A reference to any legislation includes any amendment, re-enactment or replacement of that legislation in force from time to time.

Headings in this Will are for convenience only and do not affect its interpretation.

If there is any uncertainty or ambiguity, this Will must be construed in a manner that gives effect to my apparent intention as gathered from the Will as a whole.

19. SUPERANNUATION NOTE

My superannuation account balance (including any life insurance held within superannuation) does not automatically form part of my estate and does not pass under this Will.

Superannuation death benefits are paid at the discretion of the trustee of my superannuation fund, having regard to any binding death benefit nomination I have made. If I have not made a valid, current binding nomination, the trustee has discretion to pay the benefit to my dependants (as defined in the Superannuation Industry (Supervision) Act 1993 (Cth)) or to my legal personal representative for distribution through my estate.

James Patrick O'Sullivan Signature

Witness 1 Signature

Witness 2 Signature

20. LIFE INSURANCE NOTE

Any life insurance policy I hold may or may not form part of my estate, depending on how the policy is structured and whether I have nominated a beneficiary directly with the insurer.

If I have made a direct beneficiary nomination on a life insurance policy, the proceeds of that policy will be paid to the nominated beneficiary and will not form part of my estate or pass under this Will.

If no beneficiary is nominated on a policy, or if the nominated beneficiary does not survive me, the proceeds may be paid to my estate and distributed in accordance with this Will.

NOTE -- EFFECT OF MARRIAGE AND DIVORCE

Effect of marriage

Under section 12 of the Succession Act 2006 (NSW), a Will is revoked by the testator's marriage, unless the Will was made in contemplation of that marriage. If I marry after signing this Will, this Will will be revoked unless it was made in contemplation of that marriage.

Effect of divorce

Under section 13 of the Succession Act 2006 (NSW), if a marriage is dissolved after this Will is made, any gift to the former spouse and any appointment of the former spouse as executor, trustee or guardian takes effect as if the former spouse had died before me. This applies to legal divorce only -- separation alone does not have this effect.

James Patrick O'Sullivan Signature

Witness 1 Signature

Witness 2 Signature

Execution & Attestation

James Patrick O'Sullivan

Signature

Date

We the undersigned were both present at the same time and saw the willmaker, James Patrick O'Sullivan, sign this Will and then we signed it ourselves in the willmaker's presence:

Witness 1

Witness 1 Signature

Witness 1 Name (Print Name)

Witness 1 Address

Witness 1 Occupation

Witness 2

Witness 2 Signature

Witness 2 Name (Print Name)

Witness 2 Address

Witness 2 Occupation